1951

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FAR EASTERN DEPARTMENT

JAPAN

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FJ 1022/253

FROM

Foreign Office Minute.

Mr. R. H. Scott.

No. 1

Dated 11th April 1951.

Received in Registry— 13th April 1951.

Japanese Peace Treaty: information regarding proposed discussions between British & U.S. Officials concerned in the drafting the J.P.T., either in London or W'ton.

Refers to F.O. Tel No 1417 to W'ton (FJ 1022/227).

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ABM
10/4

(Print)

(How disposed of)

Dft) Mr Tomlinson (W'ton) from
Mr. Johnston.
April 11th

(Action completed)

17/4

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JAPANESE PEACE TREATY

Sir O. Franks and Mr. Dulles agreed at their last meeting that there should be discussions at an early date, either in London or Washington, between the British and United States officials concerned in drafting the Japanese Peace Treaty. In the same interview Mr. Dulles said that, speaking personally, he would like to see rapid agreement between us on a draft Treaty to be circulated to the other Governments concerned in both our names (Washington telegram No. 1030, paragraphs 5 and 7). The Secretary of State welcomed both suggestions and said that we would be ready to discuss the United States draft about the 23rd April, hoping that the discussions would result in recommendations to our two Governments aimed at securing a joint Anglo-United States draft for circulation at the earliest possible moment (F.O. telegram to Washington No. 1417 of the 10th April).

FJ1022/227 Flag A

Flag B FJ1022/227

2. Since our telegram was despatched, we have received a letter from Mr. Tomlinson in Washington saying that he has discussed the question further with Mr. Allison, the senior State Department official on Mr. Dulles's staff. Mr. Allison said that, in the State Department's view, any discussions could best take place in Washington, since the small group dealing with the Japanese Peace Treaty on the American side were now so well-known that any visit by them to London would be bound to cause press speculation. Mr. Allison suggested that someone might come over from London to take part in discussions lasting for a week or ten days and beginning about the 23rd April (the same date as that suggested independently in our telegram to Washington). Mr. Allison would conduct the discussions on the American side in the first stages and Mr. Dulles, who would be away on leave from the 20th to the 29th, would be back for the last few days to deal with any outstanding points of policy.

3. It seems that we ought to take advantage of this suggestion at once and offer to produce a team to negotiate in Washington from the 23rd April. The Americans are inclined to suspect that we are trying to slow down the conclusion of the Peace Treaty and, although presumably on their side the removal of General MacArthur will make the requirement for a Peace Treaty somewhat less pressing, it seems important that we on our side should do what we can to disprove the quite untrue accusation that we are "dragging our feet."

4. Our study of the United States draft Treaty is being pressed ahead ~~with~~, and we hope to be able to submit to the Secretary of State on Saturday, the 14th April, a draft paper for consideration by the Cabinet on Thursday, the 19th April. If this programme is fulfilled, we should be ready to start talks in Washington on the 23rd April as suggested. Sir E. Beckett will be able to make a Legal Adviser available for the talks, if possible Mr. Fitzmaurice, who has been closely concerned with the production of our draft Treaty.

Recommendation

5. That Mr. Fitzmaurice or another Legal Adviser and Mr. Johnston should go to Washington to start talks with Mr. Allison and State Department representatives about the 23rd April, with the object of giving the State Department our observations on the United States draft Treaty on lines to be approved by the Cabinet, and, if possible, of producing an agreed United Kingdom-United States draft for

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submission to His Majesty's Government and the United States Government for approval. It is doubtful whether Sir E. Dening would be fit to travel to Washington by then, and in any case the United States intention is that the negotiations should be mainly conducted by Mr. Allison, with Mr. Dulles only coming in at the end if necessary.

6. In the circumstances, this proposal seems to be the quickest way of showing the Americans that we mean business over the Japanese Peace Treaty. I trust that it may be approved.

7. Copies of this minute are being sent to the Chief Clerk and Sir Eric Beckett.

8. We would hope that Sir E. Dening would be able to take part in the next stage of the negotiations, when it would perhaps be appropriate to ask Mr. Dulles to come to London.

R. H. Scott

Permanent Under Secretary.

11th April, 1951.

It has been reported in the press that Mr. Dulles is now going again to Tokyo. We have had no confirmation of this from H.M.Embassy but are asking them about it. We are also asking them whether the removal of General MacArthur modifies the procedure which the State Department have in mind as described in paragraph 2 above.

Subject to this, I agree with the proposals in Mr. Scott's minute.

W. Strang

12th April, 1951.

Yes. Presume B of T & other depts sufficiently concerned ~~with~~ will be represented. Textile people may be worried. Mr H Rhodes is knowledg~~ing~~able abt Japan & if Pres. agrees might be consulted there end.

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Mr C H Johnston RID 13/4.

Draft Saving tel.

C.A.S. 14.iv.

OUT FILE

FOREIGN OFFICE, S.W.1.

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You will by now have had my telegram in answer to your letter of the 6th April (1076/214/51) about the draft Japanese Peace Treaty. I enclose a copy of a minute which Rob Scott is submitting to the Secretary of State and we will be telegraphing officially to the Ambassador as soon as we get a decision. We are consulting the Board of Trade about whether they would wish to send a representative too.

Incidentally, your letter of the 6th April did not reach me until yesterday afternoon, the 10th April. Most of the delay is due to the time taken in transit between the bag room and the department, but it would be a great help if you would be good enough to mark any urgent letters like this with the word "Immediate" on the envelope.

I enclose a press extract giving an A.P. message from Washington dated today evidently based on a leak about our approach on Chinese participation and Formosa. We are taking the line with the press that no Note in this sense was delivered but that, as is clear from the communiqué published after Mr. Attlee's visit to the President in December, our two Governments have had to agree to differ about China, and this fact is bound to have its effect on the Japanese Peace Treaty; and that the question of Formosa is on the agenda of the United Nations and we would never dream of suggesting that it should be handed over to Communist China now. I suppose the leakiness of the State Department is a hopeless case, but you may think it worth drawing Allison's attention to this further instance.

(C.H. Johnston)

F.S. Tomlinson, Esq.,
WASHINGTON.

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F.S. Tomlinson, Esq.,
WASHINGTON.

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Washington, Wednesday.

Britain, in a surprise move, has asked the United States to revise the proposed Japanese treaty to give Formosa to the Chinese Communists.

Britain has also asked for the inclusion of Communist China in the Treaty negotiations now underway.

Responsible officials disclosing the receipt of a terse British Note along this line several days ago, said to-day neither proposal was acceptable. The British Note was presented to John Foster Dulles by British Ambassador Sir Oliver Franks.

The development is a serious break between Britain and the United States over the handling of the Treaty. - A.P.

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